

ASCII MASTER FLOW – PANEL 1/12: Method before doctrine

TEXT -> STRUCTURE -> HISTORY -> PURPOSE -> BINDING PRECEDENT.

TRIGGER -> TEST -> CASE/YEAR -> EFFECT -> LIMIT -> REMEDY.

APPLICATION -> facts must satisfy every operative element.

DOCTRINE != free-standing Article or slogan.

ASCII MASTER FLOW – PANEL 2/12: Severability, eclipse and waiver

K.M.D. Chamarbaugwala v. Union of India (1957) -> separable workable remainder

Bhikaji Narain Dhakras (1955) -> pre-Constitution law dormant to conflict extent.

Bhikaji Narain Dhakras (1955) -> consent cannot validate unconstitutional State action.

OBJECT CHECK -> part of law / enforceability / individual consent.

ASCII MASTER FLOW – PANEL 3/12: Pith, ancillary power and colourability

~~Prasanna Kumar Mukherjee (1947) -> true nature and character.~~

State of Bombay v. F.N. Balsara (1951) -> incidental overlap / effective entry.

K.C. Gajapati Narayan Deo (1953) -> disguised lack of competence.

MOTIVE alone is insufficient.

ASCII MASTER FLOW – PANEL 4/12: Territorial nexus

ART 245 -> territorial competence

State of Bombay v. R.M.D. Chamarbaugwala (1957) -> real and sufficient nexus.

TEST: connection between State, subject and imposed liability/operation.

REMOTE OR ILLUSORY nexus fails.

ASCII MASTER FLOW – PANEL 5/12: Article 254 repugnancy and occupied field

Deep Chand v. State of Uttar Pradesh (1959) + *M. Karunanidhi v. Union of India (1979)*

SAME CONCURRENT FIELD -> actual inconsistency / exhaustive scheme -> Union priority.

ART 254(1) EFFECT -> State law void only to the extent of repugnancy.

ART 254(2) ASSENT -> State prevalence; no cure for incompetence; Parliament may override.

ASCII MASTER FLOW – PANEL 6/12: Harmony, reading and invalidity

In re Kerala Education Bill (1958) -> meaningful reconciliation.

Kedar Nath Singh (1962) -> reading down within text.

READING INTO -> strong constitutional basis; cannot create a complete code.

SEVER / STRIKE -> only after saving construction fails.

ASCII MASTER FLOW – PANEL 7/12: Time, amendment and basic structure

I.C. Golaknath (1967) -> reasoned prospective overruling

Kesavananda Bharati (1973) -> Article 368 cannot damage basic structure.

Minerva Mills (1980) -> limited amending power + Part III/IV harmony.

INTERPRETATION != AMENDMENT.

ASCI MASTER FLOW – PANEL 8/12: Equality standards and proportionality

~~Ran. Kishan Dalmia (1958) -> rebuttable validity presumption.~~

E.P. Royappa (1973) -> arbitrariness/equality.

Modern Dental College (2016) -> structured proportionality.

Shayara Bano v. Union of India (2017) -> manifest arbitrariness.

K.S. Puttaswamy (2017) + Anuradha Bhasin (2020) -> rights justification.

ASCII MASTER FLOW – PANEL 9/12: Morality, transformation and religion

~~Naraj Singh Johar v. Union of India (2018) -> constitutional morality + transformation.~~

Shirur Mutt (1954) -> religious/secular distinction.

Indian Young Lawyers Association (2018) -> equality, dignity and religion conflict.

PENDING review/reference != changed holding.

ASCII MASTER FLOW – PANEL 10/12: Administration and textual restraint

Shanber Singh (1974) -> pleasure/responsible government

Motilal Padampat Sugar Mills (1978) -> promissory estoppel limits.

Navjyoti Cooperative Group Housing (1992) -> legitimate expectation.

Padma Sundara Rao (2002) -> casus omissus restraint.

ASCII MASTER FLOW – PANEL 11/12: Precedent, bench strength and Article 142

ARTICLE 141 -> binding ratio, distinguish or refer

Supreme Court Bar Association (1998) -> Article 142 cannot disregard substantive law.

SMALLER BENCH -> no silent overruling.

OBITER -> persuasive, not automatically binding.

ASCII MASTER FLOW – PANEL 12/12: UPSC integrated decision tree

1 COMPETENCE -> pith / colour / nexus / Art 254.

2 MEANING -> harmony / purpose / precedent.

3 RIGHTS -> equality / proportionality.

4 INVALIDITY -> read down / sever / strike.

5 TIME + AUTHORITY -> prospective effect / Article 141.

VERDICT: exact tests constrain judicial choice.